

HOUSE No. 4318

The Commonwealth of Massachusetts

PRESENTED BY:

Hadley Luddy and Julian Cyr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the town of Harwich affordable housing trust to provide for the creation of attainable housing.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Hadley Luddy</i>	<i>4th Barnstable</i>	<i>3/20/2025</i>
<i>Julian Cyr</i>	<i>Cape and Islands</i>	<i>3/20/2025</i>

HOUSE No. 4318

By Representative Luddy of Orleans and Senator Cyr, a joint petition (accompanied by bill, House, No. 4318) of Hadley Luddy and Julian Cyr (by vote of the town) for legislation to authorize the town of Harwich affordable housing trust to provide for the creation of attainable housing. Housing. [Local Approval Received.]

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2874 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Harwich affordable housing trust to provide for the creation of attainable housing.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2 of chapter 140 of the Harwich Affordable Housing Trust Bylaw is
2 hereby amended by adding the following subsection:-

3 "C. The purpose of the Harwich Affordable Housing Trust Fund is to provide for the
4 creation and preservation of affordable housing in Harwich for the benefit of low- and moderate-
5 income households, for the creation and preservation of attainable housing, as defined in section
6 4 of this chapter, and for the funding of community housing, as defined under section 55C of
7 chapter 44 of the General Laws."

SECTION 2. Said chapter 140 of the Harwich Affordable Housing Bylaw is hereby amended by adding the following section:-

"§140-4. Definition of Attainable Housing. For the purposes of this Bylaw, the term "attainable housing" shall mean housing that is not restricted to occupancy by low or moderate income households, and that may also include housing subject to maximum income limits to be occupied by households with gross income greater than 80 per cent but not more than 200 per cent of the area median household income as most recently determined by the United States Department of Housing and Urban Development, adjusted for household size."

SECTION 3. This act shall take effect upon its passage, provided, however, that the General Court may make clerical or editorial changes of form only to the bill, unless the Select Board approve amendments to the bill before enactment by the General Court; and provided further that the Select Board is hereby authorized to approve amendments which shall be within the scope of the general public objectives of this petition, and to further authorize the Select Board to approve the final language of any such special legislation or to take any other action relative thereto.